

COMPASSION: THE PHILOSOPHICAL DEBATE

I. COMPASSION AND REASON

Compassion is controversial. For about twenty-five hundred years it has found both ardent defenders, who consider it to be the bedrock of the ethical life, and equally determined opponents, who denounce it as “irrational” and a bad guide to action. These opponents have strongly influenced the rhetoric of contemporary debates about the emotion. Contrasts between “emotion” and “reason” are ubiquitous in the law, and in public life generally – particularly where appeals to compassion are at issue. These contrasts are seldom drawn with clarity. We are rarely told whether “irrational,” as applied to emotion, means “not involving thought” or “involving thought that is in some way substandard and bad.” In the process, we frequently encounter traces of the historical debate – but in an unclear and degenerate form. For this reason it seems worthwhile to study the historical debate closely, assessing it in connection with our evolving theory of compassion. It will turn out, I believe, that most of the contemporary opponents of compassion do not share the philosophical position with which they appear to ally themselves.

To set the stage, let us consider the way in which the attack on compassion as “irrational” has figured in one recent legal debate. In a jury instruction case¹ (concerning the same rules for sentencing under which O. J. Simpson would have been sentenced, had he been convicted), Justice O’Connor argues that “the sentence imposed at the penalty stage should reflect a reasoned *moral* response to the defendant’s background, character, and crime rather than mere sympathy or

1 *California v. Brown*, 479 US 542–3 (1987).

emotion.” The assessment of penalty, she continues, is a “moral inquiry” and not “an emotional response” – assuming without argument that these are two utterly distinct categories. Justice Brennan, too, holds that “mere sympathy” must be left to one side.

Nor is this depreciation confined to the opponents of emotion. For Justice Blackmun, while urging that compassionate emotion has a valuable and ineliminable role to play in criminal sentencing,² still accepts the contrast between emotion and reason-based moral judgment, saying that although the reaction of the juror “at times might be a rational or moral one, it also may arise from sympathy or mercy, human qualities that are undeniably emotional in nature.” This puts him in a weak and apologetic position, one that seems unlikely to persuade. More recently, Justice Thomas has assailed appeals to compassion that focus on the disadvantaged background of a criminal defendant, suggesting that such appeals are irrational because of their failure to give people sufficient credit for agency and responsibility (see Chapter 8, section II).

Much the same is true of quite a few legal and economic theorists who argue for some measure of reliance on emotion in public reasoning: again and again, one finds “empathy,” “sympathy,” and even “passion” in general contrasted with “reason” or “rationality,” in a way that inevitably puts the advocates of emotion on the defensive from the start, given the normative connotations of the term “rational.”³ What they end up saying, it seems, is that there are certain elements of the personality that do not clarify or enrich the understanding,⁴ that are in and of themselves pretty unreliable and substandard –

2 *Ibid.*, at pp. 561–3. A further problem with Blackmun’s opinion, from the point of view of the tradition, is that it speaks of the juror’s “sympathy or mercy,” thus conflating the emotion with a nonemotional attribute of judgment of which the antiemotion tradition approves.

3 See Massaro (1989), Henderson (1987); Gewirtz (1988), one of the most eloquent defenses of the role of emotion in law, still speaks of “the nonrational emotions.” A more careful defense of emotion in law, which does not fall into this trap, is Minow and Spelman (1988). On the side of economics, Frank (1988), though entitled *Passions within Reason*, does not in fact locate passion within reason, but consistently treats emotions as irrational forces that may nonetheless have valuable consequences.

4 This is not true of Gewirtz, who writes the interesting sentence, “But while the nonrational emotions can distort, delude, or blaze uncontrollably, they have worth in themselves and can also open, clarify, and enrich understanding” (Gewirtz [1988], p. 1050). It is hard to see why Gewirtz should call an element that can “open, clarify, and enrich understanding” “nonrational,” unless he is using the language of rationality in a purely

but that we should rely on them anyway in certain legal contexts. It is no wonder that critics of compassion such as Richard Posner find this a weak position, an invitation to let into the law whatever brutish and indiscriminating forces happen to be around.⁵

Both sides in this debate fall short because they fail to examine this strong opposition between compassion and reason. The claim that compassion is “irrational” might mean one of two things. It might mean that compassion is a noncognitive force that has little to do with thought or reasoning of any kind. This position, as Chapter 6 has argued, cannot bear serious scrutiny. On the other hand, it might mean that the thought on which compassion is based is in some normative sense bad or false thought; this is in fact what the serious anticompassion tradition holds. But to hold this, as we shall see, one must defend a substantive and highly controversial ethical position, one that has been defended by Plato, the Stoics, Spinoza, and, in some respects, Kant, but one that very few of the contemporary opponents of the emotion would actually be prepared to endorse (though I think Justice Thomas might). In this way, a more precise analysis of the emotion and the historical debate about its normative role can clear the ground for a more adequate contemporary approach.

II. THREE CLASSIC OBJECTIONS

The pro-compassion tradition has assumed that many of life’s misfortunes do serious harm to “undeserving” people. But for Socrates, a good person cannot be harmed.⁶ And Socratic thinking about virtue and self-sufficiency inaugurated a tradition of thought that opposes compassion, as a moral sentiment unworthy of the dignity of both giver and recipient, and based on false beliefs about the value of external goods. According to this tradition, whose most influential exponents are the Greek and Roman Stoics, the most important thing in life is one’s own reason and will – what the Roman Stoic Epictetus calls

descriptive and non-normative sense, meaning by it something like, “not concerned with the maximizing of individual satisfactions.”

⁵ See also the treatment of emotion in Posner (1992): here, emotions seem to be treated as completely impervious to reasoning and argument.

⁶ Plato, *Apology* 41D, cf. 30DC; on this see Vlastos (1991), and my review in Nussbaum (1991).